Amendment of section 10.

4. In section 10 of the Income-tax Act,—

(*a*) with effect from the 1st day of April, 2025,—

(*i*) in clause (*4D*), in the *Explanation*, in clause (*c*), in sub-clause (*i*), item (*I*) shall be renumbered as item (*I*)(*a*) and after sub-item (*a*) as so renumbered, the following sub-item shall be inserted, namely:—

"(*b*) which has been granted a certificate as a retail scheme or an Exchange Traded Fund, and is regulated under the International Financial Services Centres Authority (Fund Management) Regulations, 2022, made under the International Financial Services Centres Authority Act, 2019 (50 of 2019) and satisfies such conditions, as may be prescribed;";

(*ii*) after clause (*15A*), the following clause shall be inserted, namely:—

'(15B) any income of a foreign company from lease rentals, by whatever name called, of cruise ships, received from a specified company which operates such ship or ships in India, where such foreign company and the specified company are subsidiaries of the same holding company, and such income is received or accrues or arises in India for any relevant assessment year beginning on or before the 1st day of April, 2030.

Explanation.—For the purposes of this clause,—

(*a*) "specified company" means any company, other than a domestic company which operates cruise ships in India and opts to pay tax in accordance with the provisions of section 44BBC;

(*b*) "holding company", in relation to a foreign company or a specified company, means a company of which such companies are subsidiary companies;

(*c*) "subsidiary company" or "subsidiary", in relation to a holding company, means a company in which the holding company exercises or controls more than one-half of the total share capital either at its own or together with one or more of its subsidiary companies.';

(*b*) in clause (*23C*), with effect from the 1st day of October, 2024,—

(*i*) in the first proviso, after the words "makes an application", the words, figures and letters "before the 1st day of October, 2024," shall be inserted;

(*ii*) in the second proviso, after the words "first proviso", the words, figures and letters "before the 1st day of October, 2024," shall be inserted;

(*iii*) after the twenty-third proviso, the following proviso shall be inserted, namely:—

"**Provided also** that no approval under the second proviso shall be granted in relation to any application made on or after the 1st day of October, 2024.";

(*c*) with effect from the 1st day of April, 2025,—

(*i*) in clause (*23EE*), in the *Explanation*,—

(*A*) in clause (*i*), after the words, brackets and figures "the Securities Contracts (Regulation) Act, 1956 (42 of 1956)", the following shall be inserted, namely:—

"or clause (*n*) of sub-regulation (1) of regulation 2 of the International Financial Services Centres Authority (Market Infrastructure Institutions) Regulations, 2021 made under the International Financial Services Centres Authority Act, 2019 (50 of 2019)";

(*B*) in clause (*ii*), after the words, brackets and figures "the Securities Contracts (Regulation) Act, 1956 (42 of 1956)", the following shall be inserted, namely:—

"or the International Financial Services Centres Authority (Market Infrastructure Institutions) Regulations, 2021 made under the International Financial Services Centres Authority Act, 2019 (50 of 2019)";

(*ii*) in clause (*23FB*), in the *Explanation*, in clause (*b*), in sub-clause (*A*), in item (*II*),—

(*A*) in the opening portion, after the words "under the Alternative Investment Funds Regulations", the words, brackets and figures "or as referred to in sub-regulation (2) of regulation 18 of the International Financial Services Centres Authority (Fund Management) Regulations, 2022 made under the International Financial Services Centres Authority Act, 2019 (50 of 2019)," shall be inserted;

(*B*) in sub-item (*ii*), the word "and" shall be omitted;

(*C*) in sub-item (*iii*), for the word "or", the word "and" shall be substituted;

(*D*) after sub-item (*iii*), the following sub-item shall be inserted, namely:—

"(*iv*) any other condition as may be prescribed; or";

(*d*) in clause (*34A*), the following proviso shall be inserted with effect from the 1st day of October, 2024, namely:—

"**Provided** that this clause shall not apply with respect to any buy back of shares by a company on or after the 1st day of October, 2024.";

(*e*) in clause (*50*), for the portion beginning with the words "any income arising from" and ending with the words "under that Chapter.", the following shall be substituted and shall be deemed to have been substituted with effect from the 1st day of August, 2024, namely:—

"any income arising from any—

(*i*) specified service provided on or after the date on which the provisions of Chapter VIII of the Finance Act, 2016 (28 of 2016) comes into force; or

(*ii*) e-commerce supply or services made or provided or facilitated on or after the 1st day of April, 2020 but before the 1st day of August, 2024,

and chargeable to equalisation levy under that Chapter.".